



CHAPTER 55

An Act to consolidate the enactments relating to bastardy,
with corrections and improvements made under the
Consolidation of Enactments (Procedure) Act, 1949.
[31st July, 1957]

BE it enacted by the Queen's most Excellent Majesty, by and
with the advice and consent of the Lords Spiritual and
Temporal, and Commons, in this present Parliament
assembled, and by the authority of the same, as follows:—

1. A single woman who is with child, or who has been
delivered of an illegitimate child, may apply by complaint to a
justice of the peace for a summons to be served on the man
alleged by her to be the father of the child.

Commence-
ment of
affiliation
proceedings.

2.—(1) A complaint under section one of this Act, where the
complainant has been delivered of an illegitimate child, may be
made—

Time for
application
for summons.

(a) at any time within twelve months from the child's birth,
or

(b) at any subsequent time, upon proof that the man
alleged to be the father of the child has within the
twelve months next after the birth paid money for its
maintenance, or

(c) at any time within the twelve months next after the
man's return to England, upon proof that he ceased
to reside in England within the twelve months next
after the birth.

(2) A single woman who has been delivered of a child may,
upon proof that—

(a) before the birth she was a party to a marriage which
would have been valid but for provisions of an Act of

Parliament making it void on account of her, or the other party to the marriage, being under the age of sixteen, and

- (b) the said other party had access to her within twelve months before the birth,

make at any time a complaint under section one of this Act against that party, notwithstanding that he may not within the twelve months next after the birth have paid money for the child's maintenance.

Venue and
procedure.

3.—(1) A complaint under section one of this Act—

- (a) shall not be made except to a justice of the peace acting for the petty sessions area (within the meaning of the Magistrates' Courts Act, 1952) in which the mother of the child resides,

- (b) if made before the birth of the child, shall be substantiated on oath,

and the magistrates' court which, under the summons, is to hear the complaint shall be a magistrates' court for the said petty sessions area.

(2) The foregoing subsection shall have effect subject to subsection (2) of section three of the Maintenance Orders Act, 1950 (which relates to a complaint by a person residing in Scotland or Northern Ireland).

(3) If the justice to whom a complaint under section one of this Act has been made dies, or ceases to be a justice, or is unable to act, the summons may be issued by any other justice acting for the same petty sessions area.

Powers of
court on
hearing of
complaint.

4.—(1) On the hearing of a complaint under section one of this Act the court shall hear the evidence of the mother (notwithstanding any consent or admission on the part of the defendant) and such other evidence as she may produce, and shall also hear any evidence tendered by or on behalf of the defendant.

(2) If the evidence of the mother is corroborated in some material particular by other evidence to the court's satisfaction, the court may adjudge the defendant to be the putative father of the child and may also, if it thinks fit in all the circumstances of the case, proceed to make against him an order (referred to in this Act as "an affiliation order") for the payment by him of—

- (a) a sum of money weekly, not exceeding thirty shillings a week, for the maintenance and education of the child,

- (b) the expenses incidental to the birth of the child, and
- (c) if the child has died before the making of the order, the child's funeral expenses.

(3) Where a complaint under section one of this Act is made before or within two months after the birth of the child, any weekly sum ordered to be paid under paragraph (a) of the last foregoing subsection may, if the court thinks fit, be calculated from the date of the birth.

5.—(1) Subject to the provisions of this section and of the enactments mentioned in the following subsection, the person entitled to any payments to be made under an affiliation order shall be the child's mother, and the order shall make provision accordingly.

Persons
entitled to
payments
under
affiliation
order.

(2) The enactments referred to above are—

- (a) section eighty-eight of the Children and Young Persons Act, 1933 (which provides that, where an illegitimate child is committed to the care of a fit person or is ordered to be sent to an approved school, the person entitled to receive contributions in respect of the child under section eighty-six of that Act may be given the benefit of payments under an affiliation order in respect of the child);
- (b) the said section eighty-eight as extended by section twenty-three of the Children Act, 1948 (which applies the former section to children received into the care of a local authority under section one of the Act of 1948);
- (c) section forty-four of the National Assistance Act, 1948 (under which the National Assistance Board or a local authority giving assistance in respect of an illegitimate child may obtain an affiliation order providing for payments thereunder being made to the Board or authority, or may apply for an existing order to be varied so as to provide as aforesaid); and
- (d) section twenty-six of the Children Act, 1948 (which makes provision corresponding to the said section forty-four for the benefit of a local authority having an illegitimate child in their care or maintaining an illegitimate child in an approved school).

(3) An affiliation order may, on the application of a person other than the child's mother who for the time being has the custody of the child, either legally or by any arrangement approved by the court, be made or varied by a magistrates' court so as to entitle that person to any payments to be made under the order.

(4) Where an affiliation order for the time being provides for the child's mother to be entitled to any payments to be made under the order the payments shall be due under the order in respect of such time and so long as she is living and of sound mind and is not in prison, and if the mother has died, or is of unsound mind, or is in prison, any two justices of the peace may by order from time to time appoint some person (with his consent) to have the custody of the child; and a person appointed as guardian under this subsection shall be entitled to any payments to be made under the affiliation order and may make application for the recovery of any payments due thereunder in the same manner as the mother might have done.

Any two justices of the peace may revoke an appointment made under this subsection and appoint another person thereunder in place of the person formerly appointed.

(5) An affiliation order shall, in any case where payments to be made thereunder are not ordered to be made to the clerk of a magistrates' court under section fifty-two of the Magistrates' Courts Act, 1952, provide for the payments to be made to the person for the time being entitled thereto in accordance with the provisions of this Act.

Duration of
orders.

6. Subject to the provisions of this Act, an affiliation order shall not, except for the purpose of recovering money previously due under the order, be of any force or validity after the child has attained the age of sixteen years or has died; and payments under the order shall not be required to be made in respect of any period after the child has attained the age of thirteen years unless the order contains a direction that payments to be made under it are to continue until the child attains the age of sixteen years.

Continuance of
payments in
certain cases.

7.—(1) The power under section fifty-three of the Magistrates' Courts Act, 1952, to vary or revive an affiliation order shall, notwithstanding anything in the last foregoing section, include power to vary or revive it in accordance with the following provisions of this section.

(2) If, on the application of the child's mother, it appears to the court that the child is or will be engaged in a course of education or training after attaining the age of sixteen years, and that it is expedient for that purpose for payments to be made under the order after the child attains that age, then subject to the two next following subsections the court may by order direct that payments shall be so made for such period, not exceeding two years from the date of the order, as may be specified in the order.

(3) Subject to the next following subsection, the period specified in an order made by virtue of the foregoing provisions of

this section may from time to time be extended by a subsequent order so made, but shall not in any case extend beyond the date when the child attains the age of twenty-one.

(4) Notwithstanding anything in the foregoing provisions of this section or in any order made by virtue of this section, an affiliation order shall not operate, after the child has attained the age of sixteen,—

(a) so as to require payments thereunder to be made either—

(i) in respect of any period during which the child is detained in an approved school, or

(ii) subject to the next following subsection, in respect of any period during which the child is in the care of a local authority under section one of the Children Act, 1948, or there is in force an order under the Children and Young Persons Act, 1933, committing the child to the care of a fit person ;

(b) so as to entitle any person other than the child's mother to the payments.

(5) Sub-paragraph (ii) of paragraph (a) of the last foregoing subsection shall not apply to any part of such a period as is there mentioned during which the child is permitted to reside with his mother.

(6) Any reference in this section to a child's mother shall be taken as including a reference to any person for the time being having the custody of the child either legally or by any arrangement approved by the court, except that it shall not be taken as referring to a local authority in whose care the child is under section one of the Children Act, 1948, or a person to whose care the child is committed by an order under the Children and Young Persons Act, 1933.

8.—(1) An appeal shall lie to a court of quarter sessions Appeal. from the making of an order under this Act, or from any refusal by a magistrates' court to make such an order, or from the revocation, revival or variation by a magistrates' court of such an order.

(2) On an appeal against an order under section four of this Act by the person adjudged to be the putative father (as well as on an appeal against a refusal to make an order under that section) the court shall hear the evidence of the mother and such other evidence as she may produce, and shall also hear any evidence tendered by or on behalf of the other party, but the court shall not confirm the order appealed against (or reverse the refusal to make an order) unless the evidence of the mother is corroborated in some material particular by other evidence to the court's satisfaction.

Duty of
putative
father to
notify change
of address.

9.—(1) A person against whom an affiliation order has been made—

- (a) shall, if he changes his address and he is required to make any payment under the order to the clerk of a magistrates' court, give notice of the change to the clerk of that court;
- (b) shall, in a case where the foregoing paragraph does not apply and he is required under the order to make any payments (including payments of costs) to any person, give notice of any change of address to such person (if any) as may be specified in the order.

(2) Any person failing without reasonable excuse to give a notice which he is required by this section to give shall be liable on summary conviction to a fine not exceeding two pounds.

Attachment
of pension or
income to
satisfy
affiliation
order.

10.—(1) Where an affiliation order has been made against a person and there is payable to him any pension or income which is capable of being attached, the justices who made the order or a magistrates' court may—

- (a) after giving the person an opportunity of being heard, and
- (b) on being satisfied that the person has without reasonable cause failed to make any payments which he is required by the order to make,

order the pension or income to be attached as to the weekly amount payable under the affiliation order, or as to any lesser amount, and the amount attached to be paid to the person named by the court.

(2) An order under this section shall be an authority to the person by whom the pension or income is payable to make the payment in accordance with the order, and the receipt of the person to whom the payment is ordered to be made shall be a good discharge to the payor.

Misconduct by
guardian of
illegitimate
child.

11. If any person appointed under subsection (4) of section five of this Act to have the custody of an illegitimate child—

- (a) misapplies any money paid by the putative father for the child's support, or
- (b) withholds proper nourishment from, or otherwise abuses or maltreats, the child,

he shall be liable on summary conviction to a fine not exceeding ten pounds.

Repeals and
savings.

12.—(1) The enactments specified in the second column of the Schedule to this Act are hereby repealed to the extent specified in the third column of the Schedule.

(2) Any application, order, appointment or other thing made or having effect under or for the purposes of an enactment repealed by this Act and pending or in force immediately before the commencement of this Act shall be deemed to have been made under or for the purposes of the corresponding enactment in this Act ; and any proceeding or other thing begun under any enactment so repealed may be continued under this Act, as if begun thereunder.

(3) So much of any enactment or document as refers expressly or by implication to any enactment repealed by this Act shall, if and so far as the nature of the subject-matter of the enactment or document permits, be construed as referring to this Act or the corresponding enactment therein, as the case may require.

(4) Nothing in this section shall be taken as prejudicing the general application of section thirty-eight of the Interpretation Act, 1889, with regard to the effect of repeals.

13.—(1) This Act may be cited as the Affiliation Proceedings Act, 1957.

Short title,
extent and
commence-
ment.

(2) This Act shall not extend to Scotland or Northern Ireland.

(3) This Act shall come into force on the first day of April, nineteen hundred and fifty-eight.

Section 12.

SCHEDULE

ENACTMENTS REPEALED

Session and Chapter	Short title	Extent of repeal
7 & 8 Vict. c. 101.	The Poor Law Amendment Act, 1844.	Sections five and eight.
8 & 9 Vict. c. 10.	The Bastardy Act, 1845 ...	The whole Act.
35 & 36 Vict. c. 65.	The Bastardy Laws Amendment Act, 1872.	The whole Act.
4 & 5 Geo. 5. c. 6.	The Affiliation Orders Act, 1914.	The whole Act.
13 & 14 Geo. 5. c. 23.	The Bastardy Act, 1923 ...	The whole Act.
19 & 20 Geo. 5. c. 36.	The Age of Marriage Act, 1929.	The whole Act.
15 & 16 Geo. 6 & 1 Eliz. 2. c. 41.	The Affiliation Orders Act, 1952.	The whole Act except section four.
15 & 16 Geo. 6 & 1 Eliz. 2. c. 55.	The Magistrates' Courts Act, 1952.	Section fifty-one; subsection (4) of section eighty-three.

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Table of Statutes referred to in this Act

Short Title	Session and Chapter
Children and Young Persons Act, 1933 ...	23 & 24 Geo. 5. c. 12.
National Assistance Act, 1948	11 & 12 Geo. 6. c. 29.
Children Act, 1948	11 & 12 Geo. 6. c. 43.
Consolidation of Enactments (Procedure) Act, 1949	12, 13 & 14 Geo. 6. c. 33.
Maintenance Orders Act, 1950	14 Geo. 6. c. 37.
Income Tax Act, 1952	15 & 16 Geo. 6. & 1 Eliz. 2. c. 10.
Magistrates' Courts Act, 1952	15 & 16 Geo. 6. & 1 Eliz. 2. c. 55.

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Housing Act, 1957

5 & 6 ELIZ. 2 CH. 56

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